

Court No. - 3

Case :- WRIT - C No. - 10064 of 2025

Petitioner :- M/S S. Milan Agro Industries And 2 Others

Respondent :- State Of Uttar Pradesh And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Shekhar B. Saraf,J.

Hon'ble Praveen Kumar Giri,J.

On the request of learned counsel appearing on behalf of the petitioners, list this matter as fresh on 31.07.2025.

Order Date :- 24.7.2025

K.Tiwari

(Praveen Kumar Giri, J.) (Shekhar B. Saraf, J.)

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Hon'ble Praveen Kumar Giri,J.

As prayed, list the matter on August 11, 2025 as fresh in top ten cases.

Order Date :- 7.8.2025

DKS

(Praveen Kumar Giri,J.) (Shekhar B. Saraf, J.)

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Hon'ble Shekhar B. Saraf,J.

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1. This is a writ petition under Article 226 of the Constitution of India wherein the writ petitioner is aggrieved by the order of final assessment dated December 28, 2023. It is to be noted that an order dated November 24, 2023 was passed in writ petition filed by the petitioner, being Writ-C No. 31951 of 2023, wherein the following directions have been given:-

"It has been contended by the counsel for the petitioners that such notings cannot be considered as final assessment orders.

The matter requires consideration.

The Standing Counsel representing respondent nos. 1 to 3 and Sri Chetan Chatterjee, Advocate representing respondent nos. 4 and 5 pray for and are granted three weeks' time to file their counter affidavit. The petitioners shall have two weeks thereafter to file their rejoinder affidavit.

List on 4th January, 2024.

Meanwhile, the recovery citation dated 17.6.2023 issued by the Tehsildar, Tehsil Burhanpur, District Azamgarh shall remain stayed.

However, the Purvanchal Vidyut Vitran Nigam Ltd., Kaptanganj, Azamgarh, Uttar Pradesh shall be at liberty to institute fresh proceedings in accordance with law to recover the dues of the petitioners and after passing a final assessment order as stipulated in the Electricity Supply Code, 2005."

2. Subsequent to passing of the above order of this Court, a provisional assessment was carried out by the authorities dated

December 03, 2023. The petitioner has given a reply to the same and appeared before the authorities on December, 09, 2023. Subsequent to filing of the objections and hearing, speaking order was passed on December 28, 2023, which is under challenge.

3. It, however, appears that on the request of the petitioner, a further hearing was granted to the petitioner on January, 06, 2025.

4. The entire procedure followed by the authorities is astonishing as after the final assessment order was passed, there was no requirement under the law for the authorities to grant another hearing to the petitioner. We do not wish to go into complicity of the petitioner in this matter, at this stage.

5. However, the argument raised by Mr. Rai that a post decisional hearing was granted to the petitioner put the entire order under a cloud. Sri Rai further submits that the petitioner is ready to deposit 50% amount of the final assessment made by the authorities.

6. In light of the same, all the proceedings initiated against the petitioner including the final assessment order are quashed and set aside with the condition that the petitioner shall deposit 50% amount of the final assessment with the Executive Engineer concerned within two weeks from date.

7. Upon such deposit being made by the petitioner, the petitioner shall be entitled to file a fresh objection and thereafter an opportunity of hearing should be granted to the petitioner. After a proper hearing is granted to the petitioner, the authorities shall pass an appropriate order in accordance with law.

8. In the present case, we have found that in spite of the order having been passed in December, 2023, no appeal has been filed

and the authorities did not even attempt to recover the amount from the petitioner for over 9 months. Such a situation should not be repeated.

9. The entire proceedings against the petitioner, including the passing of the final assessment order, should be concluded within eight weeks from date.

10. With the above directions, the writ petition stands disposed of.

Order Date :- 11.8.2025

Pkb/

(Praveen Kumar Giri, J.) (Shekhar B. Saraf,J.)